
Costs Decision

Hearing held on 17 June and 31 July 2026

Site visit made on 18 June 2026

by Jennifer Wallace BA(Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Costs application in relation to Appeal Ref: 6004144

Land South of Warren Lane, Hurst Green, RH8 9BW

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Wates Developments Ltd for a full award of costs against Tandridge District Council.
 - The appeal was against the refusal of planning permission for outline planning application for up to 132 residential dwellings, including 50% affordable housing, vehicular access off Holland Road, pedestrian and cyclist access off Holland Road and Warren Lane and provision of public open space with associated landscape planting with associated infrastructure, drainage measures, earthworks and all other associated works (inc. removal of PLUTO pipeline; realignment of foul water pipelines; and grounding of power lines). All matters reserved except accessibility to the Site, for vehicles and pedestrians and cyclists.
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Decision

1. The application for an award of costs is allowed in the terms set out below.

Submissions

2. The costs application and responses were submitted in writing after the hearing by agreement.

Reasons

3. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
4. On substantive grounds, the applicant's claims are that the Council acted unreasonably by preventing or delaying development which should clearly be permitted, not reviewing their case promptly following the lodging of an appeal, failing to produce evidence to substantiate each reason for refusal, and failed to apply national policy correctly with respect to heritage assets.
5. At the time of the decision, the PPG provided advice on how to assess the contribution of sites against the criteria for grey belt. The Council's assessment against Purpose A relied heavily on assessment carried out for the withdrawn local plan. However, there is no evidence this work was carried out with regard to the specific advice on assessing sites as grey belt. It also appears to be assessing a much more substantial parcel of land as it refers to coalescence with Old Oxted, which is not related to this appeal site at all. It also refers to a Conservation Area which is not relevant to this site.

6. The Council's officer report contained a partial extract from the PPG – being that of strong or weak contribution to purpose A. There is no reference to the assessment criteria for a moderate contribution. The PPG assessment criteria refers to physical features that 'could restrict and contain development'. There were clearly features that served to contain the proposed development. There is no requirement that these features must be robust, permanent, or not inappropriate. It was also clear that the consideration of incongruous pattern of development referred to spatial patterns of development, as the PPG refers to an extended 'finger' of development. In any event, the Council's reason for refusal with respect to layout was withdrawn. There was no robust assessment against Purpose D, and the concerns in that respect were not substantiated.
7. National policy is clearly intended to direct development to sustainable locations. However, there is no expectation that every site must be able to access every service and facility by means other than the private car. The site clearly has a range of services and facilities within walking distance. There was also good access to bus stops with regular services. While the Council was not bound by the comments of the Local Highway Authority, the Council's position that the site was not sustainable was not supported by a realistic, objective analysis of the facts of the location.
8. It was not in dispute that the proposal would result in less than substantial harm to the significance of Jincox Farm House, and that harm would be towards the lower end of the scale. The test in paragraph 11di of the December 2024 Framework was there should be a strong reason for refusing the development proposed. The harm related to land identified as being within the setting of the listed building, but set at some distance from it and where the interest related to the expansive former farming use of land. It was not a reasonable exercise of planning judgement to conclude that the harm to the heritage asset formed a strong reason for refusal for the purposes of paragraph 11di, given the limited level of harm and the acknowledged significant benefits of the proposal.
9. This is not to doubt the professional qualifications or skill of the Council's witnesses at the hearing. However, I have found that on an objective basis, the assessment of the site and surrounding area did not substantiate the reasons for refusal which stemmed from the original officer report.
10. The Council did withdraw its third reason for refusal early in the appeal process. Given the nature of that reason for refusal, which focussed on the lack of information in relation to two of the reserved matters, I am satisfied that this would not have required any particular recalibration of the Council's case.
11. Taking all of these factors together, I am satisfied that the Council did behave unreasonably by preventing or delaying development which should clearly have been permitted. Consequently, the applicant has been put to wasted expense. While the appeal was dismissed, this was on the basis of an issue that arose during the hearing. It is also not a point that the appellant has relied on in their application for costs.
12. The applicant also applied for costs on a procedural basis. However, as I have found a full award of costs is justified on the basis of the substantive application, it is not necessary for me to consider this further as it would not alter my assessment of the substantive application.

Costs Order

13. In exercise of the powers under section 250(5) of the Local Government Act 1972 and Schedule 6 of the Town and Country Planning Act 1990 as amended, and all other enabling powers in that behalf, IT IS HEREBY ORDERED that Tandridge District Council shall pay to Wates Developments Ltd, the costs of the appeal proceedings described in the heading of this decision; such costs to be assessed in the Senior Courts Costs Office if not agreed.

The applicant is now invited to submit to Tandridge District Council, to whom a copy of this decision has been sent, details of those costs with a view to reaching agreement as to the amount.

Jennifer Wallace

INSPECTOR